

24SMCV02967 24SMCV02967

County: los-angeles

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Case Number: 24SMCV02967 Hearing Date: July 10, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles

Beverly Hills Courthouse | Department 205

SAUDY SANCHEZ,

Plaintiff,

v.

MF PROPERTY MANAGEMENT, INC.; SULLIVAN-DITURI CO.;

HYUK-SOO WALTER SON; and LAMDBA WAI LIM LI

Defendants.

Case No.:

24SMCV02967

Hearing Date: 07/10/26

Trial Date:

6/14/27

[TENTATIVE] RULING RE:

MOTION TO SEAL

Background

On June 20, 2024, Plaintiff Saudy Sanchez filed a personal injury complaint against Defendants MF Property Management, Inc., Sullivan-Dituri Co., Hyuk-Soo Walter Son, Lambda Wai Lim Li, and Does 1 to 50, alleging five causes of action: (1) general negligence; (2) breach of contract; (3) private nuisance; (4) breach of implied warranty of habitability; and (5) breach of implied covenant of quiet enjoyment.

Plaintiff's allegations stem from alleged water damage and the accompanying odors at the property located at 1033 11th Street, Unit D, Santa Monica, CA 90403, which he was renting from Defendants.

On August 16, 2024, Defendants filed an answer.

On May 26, 2026, Plaintiff filed the operative motion to seal the entire case record. No opposition has been filed.

Legal Standard

The court may order that a record be filed under seal only if it expressly finds facts that establish:

(1) There exists an overriding interest that overcomes the right of public access to the record;

(2) The overriding interest supports sealing the record;

(3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;

(4) The proposed sealing is narrowly tailored; and

(5) No less

restrictive means exist to achieve the overriding interest.

(California Rules of Court ("CRC") Rule 2.550, subd.

(d).)

A party moving to

seal records must make a sufficient evidentiary showing to overcome the presumed right of public access to the documents. (see *Huffy Corp. v.*

Superior Court ("Huffy") (2003) 112 Cal.App.4th 97, 108.) In

ruling on a motion to seal, the court must identify (1) the

specific information claimed to be entitled to protection from public

disclosure, (2) the nature of the harm threatened by disclosure, and

(3) any countervailing considerations. (*H.B. Fuller Co. v. Doe* (2007)

151 Cal.App.4th 879, 894.) Therefore, in order to prevail on his or

her motion, the moving party must present a specific enumeration of the

facts sought to be withheld and the specific reasons for withholding

them. (*Id.* at 904.)

The California

Supreme Court has held that the First Amendment provides "a right of access to ordinary civil trial and proceedings." (*NBC Subsidiary (KNBC-TV), Inc. v.*

Superior Court (1999) 20 Cal.4th 1178, 1212.) The court further

noted its belief that "the public has an interest, in all civil cases, in

observing and assessing the performance of its public judicial system." (*Id.* at

1210.) There is a presumption of openness in civil court proceedings. (*Id.* at

1217.) Therefore, it is up to this Court to determine if that

presumption has been overcome.

Courts must find

compelling reasons, prejudice absent sealing and the lack of

less-restrictive means, before ordering filed documents sealed. (*Hurvitz*

v. Hoefflin (2000) 84 Cal.App.4th 1232, 1246; *KNBC-TV*, 20 Cal.4th

at 1208-1209 n. 25; *Champion v. Superior Court* (1988) 201

Cal.App.3d 777, 787.) A compelling reason could include

protecting confidential trade secrets, which "have been recognized as a

constitutionally protected intangible property interest." (*DVD Copy Control*

Assn., Inc. v. Bunner (2003) 31 Cal.4th 864, 878 (internal citations

omitted).) A "contractual obligation not to disclose

can [also] constitute an overriding interest” sufficient to justify sealing the requested documents so long as the moving party establishes that disclosure of the information will result in substantial prejudice. (Universal City Studios, Inc. v. Superior Court (2003) 110 Cal. App. 4th 1273, 1283-1284.)

A proposed

sealing must also be narrowly tailored to serve the overriding interest, such as by sealing only portions of pleadings or redacting particular text that refer to the confidential information.

(In re Marriage of Burkle (2006) 135 Cal.App.4th 1045, 1052, 1070.)

Analysis

Plaintiff

moves for an order sealing the entire case record, or alternatively sealing records containing sensitive medical, confidential, and personal information.

Plaintiff’s

entire argument consists of the following five points: (1) medical and confidential information is contained within the record; (2) public access creates privacy and safety concerns; (3) plaintiff has retaliation concerns; (4) public disclosure may create ongoing housing and employment harm; and (5) less restrictive alternative means do not adequately protect Plaintiff. (Mot., at pg. 1.)

Plaintiff’s

declaration restates the same five points. (Sanchez Decl., ¶¶ 3-7.)

Plaintiff also states that he believes “the requested relief is narrowly tailored and that there is no less restrictive means available to adequately protect these interests.” (Sanchez Decl., ¶ 8.)

Plaintiff

does not adequately identify private information for which a sealing order may be warranted. Plaintiff only broadly refers to medical and confidential information within the record, without identifying the specific information or where in the record the identified information is contained. In addition, Plaintiff’s request is not narrowly tailored and does not show that there are no less restrictive means to protect his identified interests. Plaintiff does

not explain why the medical, confidential, and personal information he identifies may not simply be redacted from the record, while the rest remains open to the public. This approach is more narrowly tailored to protect the privacy interests involved. Plaintiff only offers conclusory statements about the lack of less restrictive alternative means and his request's narrow tailoring.

Accordingly,
the motion to seal is DENIED.

Conclusion

Plaintiff's motion to seal is
DENIED.

Dated: July 10, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court